

LA-CCRP-ART-987

MOTION TO SET ASIDE CONVICTION AND DISMISS PROSECUTION;

RULE TO SHOW CAUSE; ORDER OF DISMISSAL

La. C.Cr.P. art. 987 - statutory form composed from the committed LA-STATUTORY-FORMS authority

Assigned component identity: la-987-set-aside-and-dismiss-primary-filing-1

Forty-Second Judicial District Court, STATE OF LOUISIANA

PARISH OF Saint John the Baptist Parish

STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield

DOCKET / CASE NUMBER: TEST-BOUNDARY-2026-0000000000000001 DIVISION: Division Z-Long

MOTION TO SET ASIDE CONVICTION AND DISMISS PROSECUTION

Mover full legal name: Maria-Alejandra O'Shaughnessy-Whitfield

Mover date of birth: 1968-12-31

Conviction offense wording: Offense wording exactly as it appears on the boundary fixture court record, including the full court-record description

Conviction statute: Statutory citation exactly as it appears on the boundary fixture court record

Conviction or plea date: 2018-12-31

Misdemeanor or felony and selected Article: Felony - Article 893(E)

Deferred sentence and probation date: 2019-02-28

Period of the deferred sentence: Five years and the full period stated in the boundary fixture court record

Probation completion date: 2024-02-28

Whether the mover is represented by an attorney: No - use the unrepresented mover block

PARTICIPANT ASSERTIONS - THE BUILD DOES NOT ANSWER THESE

Has the period of the deferred sentence run? ☐ YES ☐ NO

Did you successfully complete the terms of your probation? ☐ YES ☐ NO

The mover asks the court, after the contradictory hearing with the district attorney's office contemplated by the committed Article 987 record, to set aside the conviction and dismiss the prosecution under the Article selected above.

REPRESENTED-MOVER BLOCK - ATTORNEY ONLY IF REPRESENTATION EXISTS

Attorney name:

Attorney bar number:

Attorney address:

Attorney telephone:

Attorney signature:

UNREPRESENTED-MOVER BLOCK

Unrepresented mover signature:

Date of unrepresented mover signature:

Printed name: Maria-Alejandra O'Shaughnessy-Whitfield

Route: obligation:track-only:LA:la-987-set-aside-and-dismiss

LA-CCRP-ART-987

RULE TO SHOW CAUSE

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PROPOSED RULE - COURT COMPLETES AND ISSUES THIS SECTION

The district attorney is ordered to show cause why the Motion to Set Aside Conviction and Dismiss Prosecution should not be granted. The rule is directed to the district attorney; the court sets the return date, time, and place.

Hearing date set by the court clerk:

Hearing time set by the court clerk:

Courtroom or place set by the court clerk:

Judge signature on the Rule to Show Cause:

Leave every line above blank for the court. The district attorney's response belongs to the district attorney and is not printed as a participant field in this packet.

Route: obligation:track-only:LA:la-987-set-aside-and-dismiss

LA-CCRP-ART-987
ORDER OF DISMISSAL

Assigned component identity: la-987-set-aside-and-dismiss-primary-filing-1

Forty-Second Judicial District Court, STATE OF LOUISIANA
PARISH OF Saint John the Baptist Parish
STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield
DOCKET / CASE NUMBER: TEST-BOUNDARY-2026-0000000000000001 DIVISION: Division Z-Long

COURT USE ONLY - UNEXECUTED PROPOSED ORDER

No finding has been made and no relief has been granted unless and until the judge completes and signs an order and the clerk enters it.

Court findings:

.....
.....
.....

Court use only - granting, denying, and decretal paragraphs:

.....
.....
.....
.....

Date of the court order:

Place of the court order:

Judge signature on the Order of Dismissal:

The participant leaves every finding, ruling, date, place, decretal paragraph, and judicial signature blank.

Route: obligation:track-only:LA:la-987-set-aside-and-dismiss

ARTICLE 987 PARTICIPANT AND FILING INSTRUCTIONS

Assigned component identity: la-987-set-aside-and-dismiss-instructions-2

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Louisiana Article 987 participant instructions

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield and only for obligation:track-only:LA:la-987-set-aside-and-dismiss.

What is included

- la-987-set-aside-and-dismiss-primary-filing-1: the mandatory three-part LA-CCRP-ART-987 statutory instrument - Motion, Rule to Show Cause, and Order of Dismissal.
- la-987-set-aside-and-dismiss-instructions-2: participant and filing instructions included in the assembled packet.

What this filing does and does not do

This is not an expungement and does not itself clear any record. It is the predicate filing that can convert a completed deferred sentence into a set-aside conviction and dismissed prosecution under Article 894(B) for a misdemeanor or Article 893(E) for a felony. After the Order of Dismissal is signed, return to the Article 977(A)(1) misdemeanor expungement track or Article 978(A)(1) felony expungement track that applies.

Required before filing

Check every prefilled neutral participant and case fact against the court record and correct the packet if it disagrees. The two assertions below remain yours alone and are intentionally blank.

Document | Blank on the document | What you must supply

LA-CCRP-ART-987 | Has the period of the deferred sentence run? [] YES [] NO | mark YES or NO from the sentencing record; this assertion is yours and the build does not make it

LA-CCRP-ART-987 | Did you successfully complete the terms of your probation? [] YES [] NO | mark YES or NO only after checking your probation discharge or completion record; this assertion is yours

Conditionally obtain the minute entry or sentencing order showing the deferred sentence under Article 893 or Article 894 from the clerk of the sentencing court wherever the court or district attorney asks to see the basis for the deferral. Check the deferred-sentence date against it.

Conditionally obtain proof of successful completion of probation from the supervising probation office, or the Department of Public Safety and Corrections, Division of Probation and Parole, wherever completion may be questioned, which the committed record says is most cases. Have it before the return date and check your completion answer against it.

Fields deliberately left blank

- Sign and date only the unrepresented-mover block after the motion is complete. If you are represented, give the instrument to your attorney; the attorney block belongs to counsel.
- Leave the Rule to Show Cause return date, time, place, and judge signature blank. The court sets them and the clerk supplies the return information.
- Leave every finding, granting or denying paragraph, date, place, and judge signature in the Order of Dismissal blank. Those fields are the court's judgment.
- The district attorney's response to the rule belongs to the district attorney and is not a participant field.

Stop and get help

Stop self-help if the district attorney opposes the motion at the contradictory hearing; if there is any dispute whether the deferred-sentence period ran or probation was successfully completed; if the court sets a contested evidentiary hearing; or if you are unsure whether the sentence was deferred under Article 893 or Article 894, or deferred at all.

This built packet is pending independent completeness, raster, visual, and counsel review. It is not approved for live use and opens no route.

Louisiana Article 987 filing instructions

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield.

File the three-part Article 987 instrument - Motion, Rule to Show Cause, and Order of Dismissal - with the clerk of the court that imposed the deferred sentence, in the parish of conviction. Article 986 makes Article 987 the form to be used; Article 986(C) lets a clerk alter it only to show the name of that court.

Ask that clerk for the filing cost before filing. Article 983 governs the cost of an expungement, not this Article 987 set-aside; ordinary motion costs may apply and vary by parish, and the committed record supplies no figure.

Article 987 prescribes no fee waiver. The Article 988 fee exemption is an expungement instrument under Article 983(F) and does not reach this filing.

The Rule to Show Cause is directed to the district attorney. The motion's prayer contemplates a contradictory hearing with the district attorney's office. No sixty-day objection window applies; that scheme belongs to Articles 979 and 980 and governs a motion to expunge.

Service is on the district attorney and on the attorney for the defendant or the defendant. Confirm the clerk's filing-copy and service mechanics, obtain the clerk-set return date, time, and place, and do not fill a court field yourself.

A contradictory hearing, district-attorney opposition, a completion dispute, or a contested evidentiary hearing ends self-help; get legal help rather than continuing on your own.

If the court signs the Order of Dismissal, ask the clerk for a certified copy. That signed order is needed for the later Article 977 or Article 978 expungement track; this Article 987 filing clears nothing by itself.

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